

M/s Mayur Sheetgrah Pvt. Ltd. v. U.P. Power Corporation Ltd.

High Court of Judicature at Allahabad · Division Bench · 7 November 2014 · Writ-C No. 59020 of 2014 · **Writ dismissed; petitioner relegated to section 127 appeal.**

HEADNOTE

A writ against a theft assessment, including a challenge to interest said to violate Supply Code clause 6.8(e)(b) and section 127(6) of the Electricity Act, 2003, will not be entertained under Article 226 where those objections can be raised in a statutory appeal under section 127. Following an earlier dismissal of the petitioner's writ on the same ground, the Division Bench declined interference and left the company to that appeal.

FACTUAL SUMMARY

Mayur Sheetgrah Pvt. Ltd. filed this writ against a theft assessment by the electricity department. An earlier writ (W.P. No. 41406 of 2014) on the same issue had been dismissed on 11 August 2014 for alternative remedy. The company alleged that U.P. Power Corporation Ltd. was arbitrarily charging interest from 1 April 2009 to 30 June 2014, contrary to clause 6.8(e)(b) of the Electricity Supply Code, 2005 and section 127(6) of the Electricity Act, 2003. Counsel accepted that the same objection could be raised in the statutory appeal.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

writ barred by section 127 appeal against theft assessment

HOLDING

Article 226 interference was refused against a theft assessment, including alleged illegal interest under Supply Code clause 6.8(e)(b) and section 127(6), because the same objections could be raised in the statutory appeal under section 127 of the Electricity Act, 2003; the petitioner was directed to file that appeal as already ordered on 11 August 2014. ¶ 1

PRINCIPLE TAGS

opportunity-before-final-assessment A writ against a theft assessment, including a challenge to interest said to violate Supply Code clause 6.8(e)(b) and section 127(6) of the Electricity Act, 2003, will not be entertained under Article 226 where those objections can be raised in a statutory appeal under section 127.. ¶ 1

relegate-to-statutory-remedy A writ against a theft assessment, including a challenge to interest said to violate Supply Code clause 6.8(e)(b) and section 127(6) of the Electricity Act, 2003, will not be entertained under Article 226 where those objections can be raised in a statutory appeal under section 127.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER INTEREST CHARGED FROM 1 APRIL 2009 TO 30 JUNE 2014 VIOLATED CLAUSE 6.8(E)(B) OF THE SUPPLY CODE, 2005 AND SECTION 127(6) OF THE ELECTRICITY ACT, 2003

Counsel accepted the objection could be raised in the section 127 appeal; the Court did not examine the interest computation or the theft assessment on merits. ¶ 1